

25PR01491 Matter of The Josephine M. Bustamente Trust

County: sonoma

Division: Probate

Hearing date: 2026-09-24

Motion: Motion for Leave to File First Amended Petition

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Matter of The Josephine M. Bustamente Trust

25PR01491

Motion for Leave to File First Amended Petition

Tentative Ruling: Petitioner seeks leave of the Court to file a First Amended Petition. The amendment purports to add two causes of action: relief under Probate Code section 259 and Elder Abuse under Welfare and Institutions Code section 15600 et seq. Petitioner also seeks to add facts clarifying Petitioner's standing, add information learned through discovery, and add intervening events that have occurred in this case since the filing of the Petition. The unopposed motion is GRANTED pursuant to C.C.P. section 473(a)(1) and rule 3.1324 of the California Rules of Court. (See Douglas v. Superior Court (1989) 215 Cal.App.3d 155, 158 ["California courts 'have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.' [Citation.] Indeed, 'it is a rare case in which "a court will be justified in refusing a party leave to amend his pleading so that he may properly present his case." ' [Citation.]"].)

Pursuant to Evidence Code section 452(d), the Court takes judicial notice of the related case, Bustamente v. Diaz, Case No. 25CV08257, on its own motion subject to the following limitation. The Court does not take notice of the truth of hearsay statements in this case and documents contained therein. (Evid. Code §§ 452(d), 453; People v. Harbolt (1997) 61 Cal.App.4th 123, 126–127 [citations omitted] [courts may "take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact."].)

Petitioner shall file and serve the proposed First Amended Petition attached as Exhibit 1 to the Sinigiani Declaration within ten (10) days of serving notice of the entry of the Court's order on this motion. Petitioner shall also serve Jacqueline Ocaña, Guardian ad Litem for settlor, who the Court appointed on September 10, 2026. (See Minute Orders dated September 10, 2026.) Respondent shall have thirty (30) days from the date of service of the First Amended Petition to file a responsive pleading.

Petitioner's counsel shall submit a written order on its motion to the Court consistent with this tentative ruling and in compliance with Rule of Court 3.1312(a) and (b).

End of Tentative Ruling

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